

		No earlier hearing date is available for this motion.
12	Tran, et al. v. Byram Healthcare Centers, Inc. 2023-01309069	<u>Plaintiffs' Motion to Amend Order and Judgment</u> Plaintiffs move to amend the February 26, 2026 order granting final approval of the class action and PAGA settlement in this case and the judgment thereon (ROA 195) (the "Order and Judgment") because the settlement administrator discovered following entry of the Order and Judgment that the gross settlement amount calculated pursuant to the escalator clause in the settlement agreement is lower than previously stated, i.e., the Order and Judgment states the gross settlement amount is \$896,166.35, but the settlement administrator subsequently discovered the gross settlement amount is \$887,287.36. Castro Decl. (ROA 210) ¶ 15. (While plaintiffs style their motion as a "renewed" motion for final approval, review of the motion papers makes clear plaintiffs seek to amend the Order and Judgment.) Plaintiffs' unopposed motion to amend the Order and Judgment to modify the gross settlement amount stated at page 2 line 13 of the Order and Judgment is granted. Plaintiffs state that other than modifying the gross settlement amount, the Order and Judgment should otherwise remain unchanged. To the contrary, as the gross settlement amount has decreased, the amount of attorneys' fees awarded to Class Counsel should also decrease proportionally. The Order and Judgment awarded Class Counsel \$291,666.67 in attorneys' fees based on a gross settlement amount of \$896,166.35 (i.e., 32.5% of \$896,166.35). The Order and Judgment shall be amended to modify the amount of attorneys' fees awarded to Class Counsel stated at page 2 line 16 to \$288,368.40 (i.e., 32.5% of \$887,287.36). The court will issue an amended order and judgment consistent with the above ruling. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
13	Doe, et al. v. Thompson, et al. 2023-01370866	<u>Attorney Raquel Y. Cooper's Motion to be Relieved as Counsel for Plaintiff John Doe 118</u> Attorney Raquel Y. Cooper moves to be relieved as counsel for plaintiff John Doe 118. The motion is denied. The moving papers (ROA 1049, 1066) state the motion hearing is June 18, 2026 at 2:00 p.m. The hearing was continued to June 25, 2026 at 2:00 p.m. ROA 1086. The court file does not contain a proof of service reflecting notice to plaintiff John Doe 118 of the June 25, 2026 hearing date. This denial is without prejudice to counsel refiling a motion that complies with Rule 3.1362 in all respects. Attorney Raquel Y. Cooper to give notice. <u>Motion to Seal Re: Plaintiff John Doe 118</u>

Plaintiffs move to seal the notice of motion and motion to be relieved, the supporting declaration, and the proposed order filed by Attorney Raquel Y. Cooper as to plaintiff John Doe 118. (Plaintiffs filed two copies of the motion to seal. ROA 1057, 1058.) The court file contains only one copy of the supporting declaration (ROA 1049), i.e., plaintiffs did not lodge an unredacted copy of the supporting declaration under seal nor did plaintiffs file a redacted copy of the supporting declaration. The court thus construes the motion as seeking to seal the notice of motion and motion to be relieved and the proposed order (ROA 1068, 1072). For the following reasons, the motion is granted in part and denied in part.

A party requesting that a court record be filed under seal “must file a motion or an application for an order sealing the record.” Cal. R. Ct. 2.551(b)(1). “The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” *Id.*

A court may order a record be filed under seal only if the court expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Cal. R. Ct. 2.550(d).

An order sealing a record must specifically state the facts that support the findings, and direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. Cal. R. Ct. 2.550(e)(1). All other portions of each document or page must be included in the public file. *Id.*

Plaintiffs seek to seal the notice of motion and motion to be relieved and the proposed order on the grounds that these documents “contain confidential and privileged attorney-client communications and private personal identifying information of” plaintiffs. Notice of Motion (ROA 1057) at 2:21-23.

Plaintiffs’ motion to seal in their entirety the notice of motion and motion to be relieved and the proposed order is denied. Plaintiffs have not demonstrated why information unrelated to privileged attorney-client communications and private personal identifying information of plaintiffs should be sealed, such as, e.g., the motion hearing date and time and the identity of counsel seeking to be relieved.

The motion is granted as to plaintiff John Doe 118’s_name and address stated in the notice of motion and motion and in Item Nos. 1 and 6 of the proposed order. In this case involving alleged sexual abuse, plaintiffs have sufficiently demonstrated overriding interests in plaintiffs’ privacy to overcome the right of public access to records, that those interests support the sealing of the records, and that a substantial probability exists that those interests will be prejudiced if the portions of the records identified in this order are

		not sealed. The proposed sealing is narrowly tailored as set forth in this order, and no less restrictive means exist to achieve the overriding interests. Plaintiffs to give notice. <u>Status Conference</u> The court has reviewed the parties' joint status conference statement filed June 18, 2026 (ROA 1354). The status conference scheduled for June 25, 2026 at 2:00 p.m. in Department CX105 remains on calendar.
40 2:30 p.m.	Herrick v. TTE Technology, Inc. 2025-01535413	<u>Attorney Andrea R. Gold's Motion to Appear Pro Hac Vice</u> Attorney Andrea R. Gold moves to appear pro hac vice for plaintiff Stephan Herrick. For the following reasons, the application is denied without prejudice. "A person desiring to appear as counsel pro hac vice in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar at its San Francisco office." Cal. R. Ct. 9.40(c)(1). The proof of service (ROA 80) does not reflect service of the application on the State Bar of California at its San Francisco office (or anywhere), and the "Notice of Filing of Pro Hac Vice Application Acknowledgement Notice" (ROA 86) is not a proof of service. The application also does not contain any evidence the application fee has been paid. The Persinger Declaration attached to Attorney Gold's two (apparently identical) applications (ROA 85, 90) is missing Exhibit A, and the "Pro Hac Vice Application Acknowledgement Notice" attached to the "Notice of Filing of Pro Hac Vice Application Acknowledgement Notice" does not refer to payment of the fee. The proof of service (ROA 80) states that one of the documents served on plaintiff's and defendant's counsel was "Filing Fee of Six Hundred Dollars," but, as noted above, the proof of service does not include the State Bar of California. Attorney Gold's application is denied without prejudice to enable plaintiff to file another application that addresses the above deficiencies. Plaintiff to give notice.